IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No. 2

CA (CAA) No. 38/Chd/Chd/2024
(1st Motion)

IN THE MATTER OF:
Ind Swift Ltd. ... Transferor Company

And

Ind-Swift Laboratories Ltd. ... Transferee Company

Under Section: 230-232, CA 2013

Order delivered on 25.10.2024

CORAM:
SHRI. UMESH KUMAR SHUKLA, HON'BLE MEMBER (T)
SHRI. HARNAM SINGH THAKUR, HON'BLE MEMBER (J)

PRESENT:
For the Companies : Mr. Anand Chhibbar, Senior Advocate with Mr. Vaibhav Sahni, Advocate, Mr. G.S. Sarin, PCS, Ms. Swati Vashisht, PCA.

ORDER

Arguments heard. During the course of hearing, learned Senior Counsel for petitioner companies stated that the notice may be issued to Drug Controller, SEBI, BSE and NSE. It was observed that the liability side of the balance sheet is not matching with the figures shown in the list of creditors and latest audited balance sheet as on 31.03.2024 is not in record upon which, it was stated that the notice may be given to all the creditors, person/entity having liability on the companies either on the basis of provisional balance sheet filed with the petition or on the basis of provisional balance sheet duly certified by the Chartered Accountant as on the date of the order.

Order reserved.

Sd/- Sd/-

(UMESH KUMAR SHUKLA)
HON'BLE MEMBER (T)

(HARNAM SINGH THAKUR)
HON'BLE MEMBER (J)

Atiqur Rehman
25.10.2024